



भारत सरकार/Government of India  
वित्त मंत्रालय/Ministry of Finance  
कार्यालय/आयुक्त सीमा शुल्क (सामान्य)  
Office of The Commissioner of Custom(General)  
Air Cargo Complex, Sahar, Andheri (E), Mumbai-99



F.No.GEN/VIG/DE/65/2026-VIG-O/o COMMR-CUS-GEN-Zone-III

Dt:11.05.2026

**CHARGE MEMORANDUM**

1. The undersigned proposes to hold an enquiry against Shri Sandeep Goel, Appraiser, under Rule 14 of the Central Civil Services (Classification, Control and Appeal) Rules, 1965. The substance of imputation of misconduct or misbehaviour, in respect of which the inquiry is proposed to be held, is set out in the enclosed statement of Articles of Charges (Annexure-I). A statement of imputations of misconduct or misbehaviour in support of the articles of charges is enclosed (Annexure-II). A list of documents by which and a list of witnesses by whom, the Articles of Charges are proposed to be sustained, are also enclosed (Annexure-III & IV).
2. Shri Sandeep Goel, Appraiser, is directed to submit within 10 days of the receipt of this Memorandum a written statement of his defence and also to state whether he desires to be heard in person.
3. Shri Sandeep Goel, Appraiser, is informed that inquiry will be held only in respect of those Articles of Charge as are not admitted. He should, therefore, specifically admit or deny the Articles of Charge.
4. Shri Sandeep Goel, Appraiser, is further informed that if he does not submit his written statement of defence on or before the date specified in para 2 above, or does not appear in person before the Inquiry Authority or otherwise fails or refuses to comply with the provisions of Rule 14 of the Central Civil Services (Classification, Control and Appeal) Rules, 1965 or the orders / directions issued in pursuance of the said Rule, the Inquiry Authority may hold the inquiry against him ex-parte.
5. Attention of Shri Sandeep Goel, Appraiser, is invited to Rule 20 of the Central Civil Services (Conduct) Rules, 1964, under which no Government servant shall bring or attempt to bring any political or outside influence to bear upon any authority to further his interests in respect of matters pertaining to his service under the Government. If any representation is received on his behalf from another person in respect of any matter dealt with in these proceedings, it will be presumed that Shri Sandeep Goel, Appraiser, is aware of such a representation and, that, it has been made at his instance and action will be taken against him for violation of Rule 20 of the Central Civil Services (Conduct) Rules, 1964.
6. The receipt of this Memorandum may be acknowledged.

  
(HARDEEP BATRA)  
COMMISSIONER OF CUSTOMS(G),  
ACC, ZONE-III, MUMBAI

Encl: Annexure-I, II, III & IV

To,  
Shri Sandeep Goel  
Appraiser



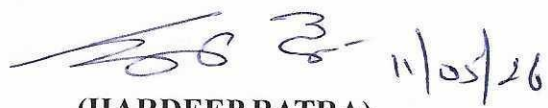
**ANNEXURE-I**  
**STATEMENT OF ARTICLE OF CHARGES FRAMED AGAINST SHRI SANDEEP**  
**GOEL, APPRAISER**

**ARTICLE OF CHARGE- I :-**

Shri Sandeep Goel, Appraiser, while posted as Docks Officer, Import Docks, Mumbai Customs Zone-I, and assigned the examination of the consignment covered under Bill of Entry No. 9582513 dated 08.01.2024, failed to perform his duties with devotion and diligence and acted in violation of the provisions of the Customs Act, 1962 and other allied Acts, rules, regulations, procedures and instructions, as detailed below:

- (i) **Failure to conduct proper and accurate 100% examination of the consignment:** The subject container had been selected for 100% examination and was marked "suspicious" by the Container Scanning Division (CSD), JNCH. Despite this, Shri Sandeep Goel failed to conduct a complete and proper examination and nevertheless recorded in ICES that the goods were fully examined, verified and found as declared;
- (ii) **Failure to detect, record and report mis-declaration, undeclared goods, ETA/WPC, BIS and packaging (LMPC/DGFT) non-compliance:** Subsequent CIU re-examination under Panchanama dated 11.01.2024 and Adjudication Order No. 23/2023-24/ADC/MKJ/ADJ dated 10.05.2024 established multiple discrepancies which were not reported in Shri Goel's examination report. These include mis-declaration of quantity, value and description; presence of undeclared goods; non-compliance with BIS marking requirements; non-compliance with ETA/WPC requirements and absence of required declarations on pre-packaged goods as mandated under General Note 5 of ITC (HS), DGFT Notification No. 44 (RE-2000)/1997-2002 and the Legal Metrology (Packaged Commodities) Rules, 2011. Shri Goel failed to detect or report these material discrepancies in his examination report. The potential revenue loss of ₹3,96,151 arising from the undervaluation would have occurred as a direct consequence of the officer's failure to carry out the mandated verification of the fairness of value stipulated in the examination order, and it was solely due to the intervention of CIU that this potential revenue loss was detected and prevented. Shri Goel also failed to put up a detailed report on these discrepancies to the Appraising Group through the DC/Docks for further necessary action under the provisions of Customs Act, 1962 and other allied Acts, rules, regulations, notifications.
- (iii) **Feeding a false/misleading examination report in the ICES system:** Shri Sandeep Goel recorded an examination report in ICES asserting that he had conducted 100% verification of description, quantity and compliance and had followed RMS instructions. The CIU's independent 100% re-examination and the Adjudicating Authority's findings, including the re-determination of assessable value, demonstrate that the report as entered was false or materially misleading and not supported by actual verification.

By his afore-mentioned acts of omissions and commissions, Shri. Sandeep Goel, Appraiser, failed to maintain absolute integrity; has shown lack of devotion to duty; acted in a manner unbecoming of a Government Servant; failed to maintain high ethical standards and honesty; failed to refrain from doing anything which is or may be contrary to any law, rules, regulations and established practices; failed to maintain discipline in the discharge of his duties and be liable to implement the lawful orders duly communicated to him; failed to perform and discharge his duties with the highest degree of professionalism and dedication to the best of his abilities. He has thereby contravened the provision of Rules 3(1)(i), (ii), (iii), (vi), (xviii), (xix), (xxi) of the Central Civil Services (Conduct) Rules, 1964.

  
(HARDEEP BATRA)  
COMMISSIONER OF CUSTOMS(G),  
ACC, ZONE-III, MUMBAI



## ANNEXURE-II

### STATEMENT OF IMPUTATION OF MISCONDUCT, IN SUPPORT OF ARTICLES OF CHARGES FRAMED AGAINST SHRI SANDEEP GOEL, APPRAISER

1.1 The Bill of Entry No. 9582513 dated 08.01.2024 (**RUD-1**) was assessed by the Import Assessment Group and the 100% examination order was given. The said Bill of Entry was also selected for scanning by the Container Scanning Division (CSD), JNCH, and the container was marked as "suspicious" (**RUD-1**).

1.2 As per Public Notice No. 31/2021 dated 30.03.2021 (**RUD-2**) issued by the Commissioner of Customs (NS-I), JNCH, the examination of containers marked suspicious by the CSD, JNCH was required to be carried out under the supervision/presence of the DC, Docks.

1.3 The goods stuffed in Container No. ZCSU6762256 under Bill of Entry No. 9582513 dated 08.01.2024 were presented at Import Docks for examination and were attended by Shri Sandeep Goel, Appraiser (SSO ID 10040955).

1.4 The subject goods were examined by the docks officer Shri Sandeep Goel, Appraiser, under the supervision of DC/Docks and the examination report (**RUD-1**) was fed by him on 10.01.2024 at 08:53 PM.

1.5 As per the examination report entered in the ICES system, Shri Sandeep Goel conducted a 100% examination of the goods imported vide Bill of Entry No. 9582513 dated 08.01.2024 under the supervision of the DC/Docks. He verified the description and quantity of the goods with reference to the Bill of Entry, invoice, packing list, and bill of lading, and followed the RMS instructions. The Out of Charge (OOC) was not given to the consignment covered by the said Bill of Entry.

1.6 The container was subsequently put on hold and the goods were examined 100% by the officer of CIU, NCH under the Panchanama dated 11.01.2024 (**RUD-3**). This examination found various discrepancies and violations in the consignment.

1.7 The Adjudicating Authority, vide Order No. 23/2023-24/ADC/MKJ/ADJ dated 10.05.2024 (**RUD-4**), confirmed the violations recorded during the Panchanama dated 11.01.2024.

1.8 The findings of the CIU examination and the Adjudicating Authority included discrepancies such as mis-declaration in respect of quantity, description and specification, and absence of statutory declarations required on pre-packed goods as per DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000 and the Legal Metrology (Packaged Commodities) Rules, 2011. These findings are set out in the following table:

**Table A**

| Sr. No. of the B/E | Description Of Goods Declared | No. of packages declared | Total quantity declared | Description Of Goods Found | Quantity found (Packages) | Total quantity found | Observation made                                                                                                                                                                                                  |
|--------------------|-------------------------------|--------------------------|-------------------------|----------------------------|---------------------------|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2.                 | Mobile Back Cover             | 319 CTNs                 | 172656 Pcs              | Mobile Back Cover          | 319 CTNs                  | 172656 Pcs           | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000. |
| 3.                 | Small Mobile Holder           | 99 CTNs                  | 12408 Pcs               | Small Mobile Holder        | 99 CTNs                   | 12408 Pcs            | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000. |



| Sr. No. of the B/E | Description Of Goods Declared | No. of packages declared | Total quantity declared | Description Of Goods Found                                                              | Quantity found (Packages) | Total quantity found | Observation made                                                                                                                                                                                                                                                                                                                                                |
|--------------------|-------------------------------|--------------------------|-------------------------|-----------------------------------------------------------------------------------------|---------------------------|----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8.                 | Headphone                     | 04 CTNs                  | 288 Pcs                 | No Description (Source: Adjudication Order No. 23/2023-24/ADC/MKJ/ADJ dated 10.05.2024) | 02 CTNs                   | 120 Pcs              | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000; Paper Sticker having BIS No. R-41195383 were pasted on all items instead of BIS No. embossed on the goods which is in violation of BIS norms. |
|                    |                               |                          |                         | Model No. P-733                                                                         | 02 CTNs                   | 160 Pcs              | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000; Paper Sticker having BIS No. R-41195383 were pasted on all items instead of BIS No. embossed on the goods which is in violation of BIS norms  |
|                    |                               |                          |                         | No Description (Source: Adjudication Order No. 23/2023-24/ADC/MKJ/ADJ dated 10.05.2024) | -                         | 8                    | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000.                                                                                                                                               |
| 9.                 | Mobile Hands-free             | 49 CTNs                  | 30204 Pcs               | Hands-free                                                                              | 10 CTNs                   | 10000 Pcs            | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000; Paper Sticker having BIS No. R-41195383 were pasted on all items instead of BIS No. embossed on the goods which is in violation of BIS norms. |
|                    |                               |                          |                         | Hands-free                                                                              | 10 CTNs                   | 2000 Pcs             | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000; Paper Sticker having BIS No. R-41195383 were pasted on all items instead of BIS No. embossed on the goods which is in violation of BIS norms  |
|                    |                               |                          |                         | Hands-free                                                                              | 29 CTNs                   | 18204 Pcs            | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000                                                                                                                                                |
| 12.                | Only Belt For Wrist Watch     | 3 CTNs                   | 2160 Pcs                | Only Belt For Wrist Watch                                                               | 3 CTNs                    | 2160 Pcs             | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000.                                                                                                                                               |
| 14.                | Small Digital Writing Pad B/O | 36 CTNs                  | 3600 Pcs                | Small Digital Writing Pad B/O                                                           | 36 CTNs                   | 3600 Pcs             | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-                                                                                                                                                                                |

| Sr. No. of the B/E | Description Of Goods Declared       | No. of packages declared | Total quantity declared | Description Of Goods Found          | Quantity found (Packages) | Total quantity found | Observation made                                                                                                                                                                                                  |
|--------------------|-------------------------------------|--------------------------|-------------------------|-------------------------------------|---------------------------|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                    |                                     |                          |                         |                                     |                           |                      | 2000)/1997-2002 dated 24.11.2000.                                                                                                                                                                                 |
| 16.                | Small Selfie Stick                  | 57 CTNs                  | 4104 Pcs                | Small Selfie Stick                  | 57 CTNs                   | 4104 Pcs             | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000. |
| 18.                | HDD Case (Computer Accessory)       | 40 CTNs                  | 4008 Pcs                | HDD Case (Computer Accessory)       | 40 CTNs                   | 4008 Pcs             | All the items were found in pre-packaged condition however Importer name, MRP etc were not mentioned on the packages/ item, which was violation of DGFT Notification No. 44 (RE-2000)/1997-2002 dated 24.11.2000. |
| 19.                | Air Filter (Motorcycle Part)        | 2 CTN                    | 48 Pcs                  | Air Filter (Motorcycle Part)        | 2 CTN                     | 55 Pcs               | Qty 7 Pcs found more than declared                                                                                                                                                                                |
| 22.                | Clutch Plate (Motorcycle Part)      | 1 CTN                    | 12 Pcs<br>As per (B/E)  | Clutch Plate (Motorcycle Part)      | 1 CTN                     | 53 Pcs               | 41 Pieces more than the declared quantity were found.                                                                                                                                                             |
| 24.                | Extension Pipe (Motorcycle Part)    | 1 CTN                    | 24 Pcs<br>As per (B/E)  | Extension Pipe (Motorcycle Part)    | 1 CTN                     | 35 Pcs               | 11 Pieces more than the declared quantity were found.                                                                                                                                                             |
| 26.                | Frame Slider (Motorcycle Part)      | 2 CTNs                   | 48 Pcs<br>As per (B/E)  | Frame Slider (Motorcycle Part)      | 2 CTNs                    | 50 Pcs               | 2 Pieces more than the declared quantity were found.                                                                                                                                                              |
| 33.                | Headlight Stay (Motorcycle Part)    | 1 CTN                    | 2 Pcs                   | Headlight Stay (Motorcycle Part)    | 1 CTN                     | 3 Pcs                | 1 Piece more than the declared quantity were found.                                                                                                                                                               |
| 45.                | Speedometer Cover (Motorcycle Part) | 1 CTN                    | 12 Pcs<br>As per (B/E)  | Speedometer Cover (Motorcycle Part) | 1 CTN                     | 19 Pcs               | 7 Piece more than the declared quantity were found.                                                                                                                                                               |

1.9 Certain un-declared goods were also found during the CIU examination, as shown below:

**Table B**

| Sr. No. | Items                           | Quantity | Remarks                  |
|---------|---------------------------------|----------|--------------------------|
| 1.      | Break and clutch lever          | 40 pairs | Goods were not declared. |
| 2.      | Electrical engine starter motor | 05 Pcs   | Goods were not declared. |
| 3.      | Disc break plate                | 03 Pcs   | Goods were not declared. |
| 4.      | Ignition Coil                   | 17 Pcs   | Goods were not declared. |
| 5.      | Silencer)                       | 11 Pcs   | Goods were not declared. |

1.10 Goods covered under the said Bill of Entry were also found to be in non-compliance with the mandatory requirements relating to WPC/ETA requirements and pre-packed commodities, including the absence of importer name and address, generic/common name, net quantity, month and year of packing/manufacture/import, and MRP. The following table records these findings:

**Table C**

| Sr. No. of the B/E | Description of Goods Declared | No. of packages declared | Total quantity declared | Description of Goods Found                                                              | Quantity found (Packages) | Total quantity found | Observation made                                                                                                                                                           |
|--------------------|-------------------------------|--------------------------|-------------------------|-----------------------------------------------------------------------------------------|---------------------------|----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8                  | Headphone                     | 04 CTNs                  | 288 Pcs.                | No Description (Source: Adjudication Order No. 23/2023-24/ADC/MKJ/ADJ dated 10.05.2024) | 02 CTNs                   | 120 Pcs              | Paper Sticker having BIS No. R-41195383 were pasted on all items instead of BIS No. embossed on the goods which is in violation of BIS norms. No ETA undertaking submitted |
|                    |                               |                          |                         | Model No. P-733                                                                         | 02 CTNs                   | 160 Pcs              | Paper Sticker having BIS No. R-41195383 were pasted on all items                                                                                                           |